

Tentative Rulings for Department 503

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Tentative Ruling

Re: ***Saghbini v. DarceMendoza***
Superior Court Case No. 25CECG05249

Hearing Date: September 3, 2026 (Dept. 503)

Motion: Petition for Compromise of Claim of Minor

Tentative Ruling:

To deny without prejudice. In the event that oral argument is requested minor is excused from appearing.

Explanation:

The court is unable to determine if the settlement is in the best interest of the minor based on the information provided in the petition. The petition indicates potential claimants who have not yet settled with the defendant. To the extent that there may be other anticipated settlements with the defendant, it is not known if these other settlement amounts would be in proportion to this defendant's liability or was limited by the policy limits.

The petition indicates that the minor is a Medi-Cal recipient and there is an existing Medi-Cal lien. Although petitioner indicates that he intends to personally repay the Medi-Cal lien, there is no assurance that the liens have in fact, been paid. Therefore, the petition must indicate that notice of this settlement has been given to the Department of Health Care Services (DHCS), and must indicate what lien DHCS is claiming. Unless the medical liens have been paid in full prior to the filing of the petition, the petition must request that any lien on either minor's settlement be paid out of that minor's settlement.

The petition also does not state the name of all providers, the amounts of their charges, the amounts paid, the amount of the negotiated reductions and the amounts owed to each provider.

Next, the petition requests that the funds be placed in an account identified as follows: VCSP/College Account under the name Saghbini. No information is provided to determine whether placement into such an account is in the best interest of the minor. For example, it is not known whether the minor or any other individual will have access to the settlement funds prior to the minor reaching age 18. And if so, there has been no showing that such access would be in her best interest. Ordinarily, the court prefers the settlement amount be held in some manner that will prevent withdrawal until the minor attains age 18, for example, in a blocked account or structured settlement, unless there are overriding reason for not doing so. Further, it is unclear whether the minor or any other individual will have access to the settlement funds, since the account does not appear to be opened under solely the minor's name.

Lastly, a proposed order approving the compromise must be lodged.

